

**FIFTH AMENDMENT TO GROUND LEASE AND
THIRD AMENDMENT TO ESCROW AGREEMENT**

This Fifth Amendment to Ground Lease and Third Amendment to Escrow Agreement (this "Amendment") is made and entered into as of this ____ day of _____, 2026, by and among SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation ("Landlord"), ALTA SUNSET II LLC, a Florida limited liability company ("Tenant"), and QUESADA VALDES PLLC ("Escrow Agent").

Background

A. Landlord and Alta Sunset, LLC, a Florida limited liability company ("Original Tenant"), entered into that certain Ground Lease, effective as of August 31, 2018, as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 (the "First Amendment"), as amended by that certain Second Amendment to Ground Lease, dated as of March 14, 2022 (the "Second Amendment"), as amended by that certain Third Amendment to Ground Lease, dated as of May, 2023 (the "Third Amendment"), and as further amended by that certain Fourth Amendment to Ground Lease, dated as of September 30, 2024 (the "Fourth Amendment," and together with the First Amendment, Second Amendment, and Third Amendment, the "Lease").

B. Landlord, Original Tenant, and Escrow Agent entered into that certain Escrow Agreement, dated as of August 2018, as amended and restated by that certain Second Amendment and Restated Escrow Agreement, dated as of September 2024 (together, the "Escrow Agreement").

C. Pursuant to the Lease, Landlord leases to Tenant certain real property located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described in the Lease (the "Land") and the improvements presently located thereon (the "Improvements," and together with the Land, collectively, the "Leasehold Estate").

D. Pursuant to that certain Assignment and Assumption of Ground Lease, dated as of October 1, 2025, between Original Tenant and Tenant, and that certain Consent to Assignment of Ground Lease, dated as of October 1, 2025, executed by Landlord (together, the "Assignment Documents"), Original Tenant assigned all of its right, title, and interest in the Lease and the Escrow Agreement to Tenant, and Tenant assumed all of the obligations of Original Tenant under the Lease and the Escrow Agreement.

E. Tenant has received a firm commitment for a construction loan in the principal amount of approximately \$91,750,000.00 (as such amount may be increased or decreased from time to time) for the construction of the Improvements (the "Construction Loan").

F. In light of Landlord's payoff of the Existing Mortgage (as defined in the Lease) and the parties' agreement regarding certain rent adjustments, escrow deposit requirements, and release conditions, Landlord, Tenant, and Escrow Agent desire to further amend and modify certain provisions of the Lease and the Escrow Agreement as set forth below.

Amendments

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord, Tenant, and Escrow Agent hereby agree to amend the Lease and the Escrow Agreement as follows:

1. Amendment to Section 3.2 (c) (iv) of the Lease and Section 5 of the Escrow Agreement. Subject to the closing and initial funding of the Construction Loan to be granted by Madison Realty

Capital/MRCE RE Holdings II LLC or its affiliates (together with its respective successors and/or assigns, as their interests may appear) now Section 3.2 (c) (iv), as amended by Amended Lease dated September 8, 2020; further amended by Fourth Amendment to Ground Lease dated September 30, 2024 is hereby deleted in its entirety in that the Tenant has complied with all the terms and conditions of said section and will have satisfied all the conditions of the Lease regarding construction upon the closing of the Construction Loan.

2. Section 3.2(a) of the Lease is hereby amended and restated in its entirety as follows:

“Section 3.2 Construction of Improvements (Present and Future, as applicable) on the Land.

(a) This Lease is being made on the express condition that Tenant demolishes the Existing Improvements and constructs and develops a residential apartment building comprised of approximately 314 rentable units, approximately 5,444 square feet of retail space on the ground floor, structured parking, and other related uses, improvements and amenities, all consisting of approximately 264,430 rentable square feet and in accordance with the City of South Miami Development Agreement, dated March 30, 2023, as amended (the “**Project**”). A more detailed description of the Project, the components and the proposed size, configuration, height and amenities of the components to be delivered to Landlord within 10 days of Landlord’s written request.”

3. Amendment to Section 4.3 - Mortgage Payment Adjustment. Section 4.3 of the Lease, as Amended by the Fourth Amendment to Ground Lease dated September 30, 2024, is hereby deleted in its entirety and replaced with the following:

“Section 4.3 Landlord and Tenant acknowledge and agree that: (a) Landlord has paid off the Existing Mortgage in full; (b) Tenant paid the monthly installments due under the Existing Mortgage from the Effective Date through September 22nd, 2025, the agreed date of Commencement of Construction (the “Construction Start Date”); and (c) Tenant overpaid mortgage payments for approximately five (5) months beyond the Construction Start Date. In consideration of the foregoing, and in full and final settlement of all claims related to such mortgage payments, Tenant will receive a credit of \$5,000.00 per month against the Base Rent due under Section 4.2 of the Lease for a period of three consecutive months commencing with the first full month following the execution of this Amendment.”

4. Amendment to Section 4.1 of the Lease and Escrow Agreement - Escrow Deposit Confirmation. Section 4.1 of the Lease, as amended on September 8, 2020, and Section 2 of the Escrow Agreement are hereby amended by adding the following provision:

“Landlord, Tenant, and Escrow Agent acknowledge and agree that, as of the date of this Amendment, the current balance of the Escrowed Funds (as defined in the Lease) held by the Escrow Agent is Eight Hundred Fifty-Nine Thousand One Hundred Thirty Dollars (\$859,130.00), together with all interest accrued thereon (collectively, the “Existing Escrow Balance”). Notwithstanding anything to the contrary in the Lease, as amended, or the Escrow Agreement upon the closing and initial funding of the Construction Loan (a) Tenant shall have no obligation to increase the Third Deposit to \$1,000,000.00, and (b) the Existing Escrow Balance will be deemed to satisfy in full all escrow/security deposit funding requirements under the Lease and the Escrow Agreement.”

The Escrowed Funds shall remain in escrow with the Escrow Agent until the completion of construction and the earlier of (i) 6 months after a Temporary Certificate of Completion/Occupancy has been issued by the City of South Miami; or (ii) Tenant has obtained and received funding of

permanent financing on the Improvements. At such time, Escrow Agent shall promptly release the Escrowed Funds to Tenant.”

5. Section 5 of the Escrow Agreement is hereby amended and restated to be consistent with the foregoing release process and timing, and in the event of any conflict between the Lease (as amended hereby) and the Escrow Agreement, the Lease (as amended hereby) will control. Upon release of the Existing Escrow Balance in accordance with Section 4 above, Escrow Agent will have no further duties with respect to the Escrowed Funds except to provide a final accounting to the parties and comply with any applicable tax reporting obligations.”

6. Except as amended hereby, the remaining portions of the Lease and the Escrow Agreement shall continue in full force and effect and are hereby ratified and confirmed. This Amendment is binding upon the parties hereto, their successors and assigns. In the event of a conflict between the Lease or the Escrow Agreement and this Amendment, this Amendment shall control.

7. Tenant and Landlord represent and warrant to each other that neither has had any contacts or engaged in any actions with any broker, which would give rise to any claim from any broker in connection with the negotiation or execution of this Amendment. Tenant and Landlord hereby indemnify each other from and against any and all claims for brokers’ commissions relating to the negotiation or execution of this Amendment and alleged to be due because of an agreement of the indemnifying party.

8. All terms capitalized but not defined herein shall have the same meaning ascribed to such terms in the Lease.

9. This Amendment shall be governed by and construed under the laws of the State of Florida.

10. This Amendment may be executed in several counterparts, each of which shall be deemed an original, but all constituting only one agreement. Signatures delivered by email in portable document format (PDF), facsimile, or other electronic transmission, or via a commercially recognized electronic signature platform (including DocuSign) will be effective as originals.

[SIGNATURES ON FOLLOWING PAGES]

IN WITNESS WHEREOF, the parties have executed this Amendment as of the date first above written.

LANDLORD:

SUNSET-MIAMI INVESTMENTS, INC.,
a Florida corporation

By: _____
Name: Teresa Sordo
Title: President

ESCROW AGENT:

QUESADA VALDES PLLC

By: _____
Name: G. Frank Quesada, Esq.
Title: Partner

TENANT:

ALTA SUNSET II LLC, a Florida limited liability company

By: Alta Sunset II Holdings LLC, a Delaware limited liability company, its sole member

By: Alta Sunset II Holdco, LLC, a Florida limited liability company, its managing member

By: Alta Sunset Investors II LLC, a Florida limited liability company, its sole member

By: APM Sunset II LLC, a Florida limited liability company, its manager

By: _____
Name: Felipe Raimundo Onetto
Title: Management Committee Member

By: _____
Name: Juan Ignacio Montes Labarca
Title: Management Committee Member